

HUNTER McMAHON

Chief Operating Officer

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Mr. Hunter McMahon is the Chief Operating Officer for iDiscovery Solutions (iDS), focused on collaborating with our team of experts to provide industry leading solutions for clients.

Clients continue to rely on Mr. McMahon as a strategic partner, leveraging data analytics for litigation, investigations, data privacy, compliance issues, and more. He has served as a testifying and consulting expert to corporations both large and small, while working with Am Law 100 and boutique law firms.

Mr. McMahon is a member of The Sedona Conference, Working Groups 1 (Electronic Document Retention and Production), 6 (International Electronic Information Management, Discovery and Disclosure), and 11 (Data Security and Privacy). He is also a member of the American Bar Association, Defense Research Institute, and the International Association of Privacy Professionals (IAPP). Mr. McMahon began his career running IT and litigation support for a mid-size law firm and has recently led teams of experts for similarly situated companies.

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SELECT EXPERIENCE

- Assisted in-house and outside counsel with the identification and evaluation of over a dozen structured data sources in effort to defend against multiple FLSA class actions. The analysis ultimately reduced the class size and settlement value by removing questions of fact and disproving Plaintiff's claims of averages.
- Worked with in-house and national coordinating counsel to develop a Discovery Playbook for insurance defense matters, resulting in more efficient handling of projects and reduction of burden on in-house resources.
- Assisted a corporate human resources department with evaluating HRIS data sources and repositories during system migrations for legal hold obligations for pending FLSA class actions.
- Collaborated with outside counsel in the evaluation of a key employee departure and assisted with the analysis of voluminous event logs, as well as correlation efforts to establish a timeline of events and identify additional sources of stolen information.
- In the energy services industry, led data mapping and litigation readiness efforts ultimately resulting in substantial savings during ensuing litigation; subsequently named as the company's 30(b)(6) for multiple matters.
- Collaborated with data forensics team and outside counsel to evaluate and provide potential explanations regarding missing data, successfully avoiding sanctions.
- Worked with energy client's in-house team to document existing protocols and prepare for migration to Office365 while fulfilling legal hold obligations. Resulted in a Discovery Playbook that could be leveraged immediately and updated periodically as upgrades were made.
- Assisted national coordinating counsel with developing a custom database to manage multi-district litigation (hundreds of claims) resulting greater transparency for the client and work product sharing for counsel.

EDUCATION

- Certified Information Privacy Technologist (CIPT, 2016)
- Juris Doctorate, University of La Verne College of Law (2011)
- Bachelor of Arts, Political Science, Azusa Pacific University (2007)

PUBLICATIONS

1. "The Double-Edged Sword of "Digital Exhaust", Corporate Counsel Business Journal (2018)
2. "Analyze This (and That): Event-Based Analysis: Changing Your Vantage Point", iDS Blog (2017)
3. "Drawing a Privacy Line in Today's Data Rich World", Round Table, Metropolitan Corporate Counsel (October 2017)
4. "5 Tips to Help Mitigate Insider Theft", Metropolitan Corporate Counsel (March 2017)
5. "The eDiscovery Obstacle Course: A Survival Guide", LinkedIn (October 2016)

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6. "Having a Game Plan", LinkedIn (August 2016)
7. "Data with Purpose", LinkedIn (July 2016)
8. "Location, Location, Location", LinkedIn (June 2016)
9. "Focused Agility", LinkedIn (June 2016)
10. "Introduction to ESI and Obstacle Course Racing", LinkedIn (May 2016)
11. "Whose Cloud is That?", Altep Articles (November 2015)
12. "A Case for IG Analytics", Law Technology News (November 2015)
13. "The Value of Structured Data in Discovery", Corporate Counsel (September 2014)
14. "Social Media Realities for Corporate Counsel", Corporate Counsel (October 2013)
15. "Get enformed!", eDiscovery Connection (Defense Research Institute, eDiscovery Committee) Vol. 7 Issue 1, at 4
16. "DRI Survey of Federal and State Court Electronic Filing Rules", The DRI Defense Library Services, Defense Research Institute – Technology Committee (Summer 2010)
17. "Shortcomings of the Federal Rules of Civil Procedure", eDiscovery Connection, Defense Research Institute – eDiscovery Committee (Summer 2009)

TESTIFYING EXPERIENCE

1. Expert Report and Deposition on information on mobile devices, Wellin et al v. Wellin et al., US District Court, District of South Carolina, Charleston Division (2018)
2. Declarations on forensic artifacts and related analyses, IQVIA, Inc. et al v. Veeva Systems, Inc., US District Court, District of New Jersey (2018)
3. Declarations on analysis of structured data, Ortega, et al, v. J.B. Hunt Transport, Inc., US District Court, Central District of California (2018)
4. Declaration on records production from corporate systems, The United States of America ex rel. Cori Rigsby and Kerri Rigsby v. State Farm Fire & Casualty Company, et al, US District Court, Southern District of Mississippi (2018)
5. Declarations on backup tapes and restoration efforts, The Physicians Alliance Corporation v. WellCare of Louisiana, Inc. et al, US District Court, Middle District of Louisiana (2018)
6. Declaration on structured data sources, Craftwood Lumber Company v. Senco Brands, US District Court, Northern District of Illinois, Eastern Division (2016)
7. Declaration on eDiscovery standards, Monje et al v. Spin Master, Inc., et al., US District Court, Arizona (2016)
8. Declaration on structured data sources and burdens of retrieval, Adams v. Midwest Insurance, (2015)
9. Declaration on native format of email, Cheryl Borden and Sandra Miller v. Embassy

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Management, LLC et al., Superior Court, State of Washington, County of Pierce (2015)

10. Declaration on native format of email, Kathleen Story and Allisa Root v. Heartland Grading et al., Superior Court, State of California, County of San Diego (2014)
11. Declaration on cost of eDiscovery, Christopher Stephen Miller v. Hartford Securities Distribution Company, Inc., Financial Industry Regulatory Authority, Dispute Resolution – Arbitration (2013)
12. Declaration on cost of eDiscovery, Ashwin Nanda v. Western Dental Services, Inc. et al., Superior Court, State of California, County of San Francisco (2013)
13. Expert Report, Deposition and Court Testimony regarding website structure and analysis, Harbor Breeze Corporation, Inc. v. Newport Landing Sportsfishing, et al., Superior Court, State of California, Los Angeles (2012)

SELECT SPEAKING ENGAGEMENTS AND CONFERENCES

1. EDI Judicial Symposium, "The Omnipresent Smartphone: What is on it and how do you get it?" (2018)
2. Pennsylvania Bar Institute, "E-Discovery–Emails and Social Media and Other On-Line Evidence" (2018)
3. ILTA Webinar, "Nanosensors and the Internet of Nanothings" (2018)
4. Multiple firms & associations, CLE, "Leveraging Structured Data" (2018)
5. Multiple firms, CLE, "Digital Breadcrumbs" (2017, 2018)
6. Metropolitan Corporate Counsel, Drawing a Privacy Line in Today's Data Rich World (2018)
7. Multiple firms, CLE, "How to Turn Conceptual Analytics into Investigative Assets" (2017)
8. Multiple firms, CLE, "A Road Map to Social eDiscovery" (2017)
9. Multiple firms, CLE, "A SMART Approach to Discovery" (2016, 2017)
10. San Francisco Bar Association – Lunch and Learn, "How Private is Private" (2016)
11. Master's Conference – Chicago, panel discussion, "Is Your Discovery Secure?" (2016)
12. Seminar series, CLE, "Employee Investigations & Playbook" (2016)
13. Webinar, speaker, "CORE Discovery" (2016)
14. Federal Bar Association, speaker, "Evolution of Discovery: From Paper to Data" (2015)
15. Master's Conference – Washington DC, panel discussion, "Is Your Discovery Secure?" (2015)
16. Webinar, "The Real Value of Structured Data" (2015)
17. Women in eDiscovery, CLE, "Dealing with Structured Data," (2015)
18. eDiscovery Institute, speaker, "eWorkplaces, the Future and the Challenge" (2015)

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19. 9th Annual Emerging Issues for In-House Counsel, speaker, "How Private is Private?" (2014)
20. Marcus Evans CLO Summit, "Challenges of Legal Departments Managing Mushrooming Legal Data" (2014)
21. High Tech Crimes International Association (HTCIA), "Managing the Attorney – Forensic Technician Relationship" (2013, 2014)

PROFESSIONAL AFFILIATIONS

- The Sedona Conference, Working Groups 1, 6, and 11
- Defense Research Institute
- American Bar Association
- International Association of Privacy Professionals (IAPP)

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